

STATE OF NEW YORK

9614--A

IN ASSEMBLY

January 21, 2026

Introduced by M. of A. HEVESI, CASHMAN -- read once and referred to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to prohibiting the use of timeout boxes, closets or other secluded physical enclosures in schools in the state

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The education law is amended by adding a new section 116 to
2 read as follows:

3 § 116. Prohibitions on timeout boxes in schools. 1. The use of timeout
4 boxes, closets or other secluded physical enclosures for the isolation
5 of children are prohibited in schools in the state, except for the
6 authorized limited use of timeout and physical restraint as prescribed
7 in the commissioner's regulations.

8 2. For purposes of this section:

9 (a) "Timeout box" shall include, but not be limited to, a temporary or
10 permanent wooden, metal, or padded enclosure or structure where a child
11 is isolated.

12 (b) "School" means a public school district, board of cooperative
13 educational services, charter school, state-operated and state-supported
14 school pursuant to articles eighty-five, eighty-seven and eighty-eight
15 of this chapter, in-state and out-of-state private residential or non-
16 residential school for the education of students with disabilities
17 approved pursuant to article eighty-nine of this chapter or operating
18 under article eighty-one of this chapter, state-administered prekindergarten
19 program directly operated by a school district, board of cooperative
20 educational services, or an eligible agency, as defined in 8 NYCRR
21 151-1.2 (b), or operated by a school district in collaboration with an
22 eligible agency, preschool special education program approved pursuant
23 to section four thousand four hundred ten of this chapter, and registered
24 nonpublic nursery school, kindergarten, and high school, and a
25 nonpublic school serving grades one through eight that has a registered
26 high school, in this state.

27 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[] is old law to be omitted.

LBD14409-04-6